IN THE DISTRICT COURT KASOA-OFAAKOR SITTING BEFORE HER WORSHIP LINDA AMISSAH ON TUESDAY THE 19TH DAY OF AUGUST, 2025.

SUIT NO. CR/OF/DC/A4/273/2023

ABIGAIL BOAHENE ……. PLAINTIFF

VRS

KWASI AMPEDU ……. DEFENDANT

JUDGMENT

This is a sequel to the dissolution of the marriage between the parties on the 12th November 2024. The parties were ordered to provide additional evidence to aid the court in distributing the matrimonial properties. The petitioner prayed for an equal distribution of the following properties.

- A two - bedroom house at Nyanyano, Kasoa.
- A parcel of land at Millennium City, Gomoa Fetteh
- A KIA Sol Saloon Car
- Part of a building materials business

CASE OF THE PETITIONER

It is the case of the petitioner that three months into their marriage, the respondent informed her that he had information of the sale of a half plot of land at Kojo Oklu, Nyanyano. When the respondent was going to pay for the land, he went in the company of her sister, named Maame Ekua. After the purchase, they began with the development of the land in order not to lose it to encroachers. It was agreed between the parties that she would take up the payment of school fees for their first child and the antenatal bills for their second child, whom she was carrying at the time. The respondent was to use his earnings to purchase building materials for the construction of the building. According to the petitioner, at the time, she was trading in clothes and fabrics. Also, money for the upkeep of the home was reduced by the respondent to afford him enough money to construct the building. With this arrangement, an arrangement which has continued to date, they built the house and moved in. A year after they moved into the house, the respondent again told her about a land at Fetteh Pentecost which he wanted them to purchase. With regards to this land, the grantors came to their home to collect the purchase sum. Together with the respondent, they constructed a single room on this land to protect it. The petitioner averred that both lands were purchased when they agreed that she would pay the school fees of the children, whilst the respondent used his earnings to purchase the land.

CASE OF THE RESPONDENT

It is the case of the respondent that he purchased the land at Kojo Oku, Nyanyano in 2021, before he got married to the petitioner. He tendered Exhibit A, the receipt issued to him on the purchase of the land. He developed the land to the lintel level before he got married to the petitioner.

He rented a shop in which he ran a business. The petitioner impressed upon him to allow her to manage the shop, which he allowed. The petitioner collapsed the business, and the landlord recovered possession of the shop after the expiration of the tenancy.

Now, the relevant statute that deals with property sharing in marriage is Section 21 (1) of the Matrimonial Causes Act, Act 367. It provides: "*when a decree of nullity or divorce is granted, if the court is satisfied that either party to the marriage holds title to movable or immovable property, part or all of which rightfully belongs to the other, the court shall order transfer or conveyance of the interest to the party entitled to it upon such terms as the Court thinks just and equitable.*

The current position of the law on property settlement is that it is no longer essential for a spouse to prove a direct, pecuniary, or substantial contribution in any form to the acquisition of marital property to qualify for a share. It was sufficient if the property was acquired during the subsistence of the marriage. However, when it comes to the quantum of proportion that has to be settled between the parties, it is reasonable for the parties to offer evidence as regards the financial provision each made to assist the court in its quest to apply fairness and equity in the matter. **See: the dictum of APPAU JSC in ADJEI V ADJEI J/4/2021 GHASC 5 (21 April, 2021)**

With the law set out, this court would now distribute the matrimonial properties.

THE TWO - BEDROOM HOUSE AT KOJO OKU, NYANYANO, KASOA.

The petitioner indicated that the land on which this property was built and the construction of the building were financed by both parties when they went to an arrangement that the respondent would use his income in the construction of the

building, whilst she pays the school fees of the children and also the money for the upkeep of the home was reduced by the respondent to afford him money to construct the building.. The respondent, on the other indicated that he purchased the land in the year 2001 and that the petitioner got to know about the building when, after she had delivered, he led her right from the hospital to the house just to give her a surprise. The respondent tendered Exhibit 1, a receipt issued by the Gomoa Nyanyano Traditional Council for the payment of the plot of land.

The petitioner, during cross examination, made it known to the court that the parties got married in February 2012. In her cross-examination of the respondent, she asked : "*I put it to you that, on the 13th March, 2012, you, together with my sister Maame Akua, visited the land at Kojo Oku, the state of the building was at the footing level.*"

The respondent, in answering this question, said that when he went to the site with the petitioner's sister, the building was at the window level. What this court deduces from the totality of the evidence is that during the subsistence of the marriage, the building was still under construction. Indeed, the evidence of the respondent that he drove the petitioner to the matrimonial home after she delivered confirms that the building was not completely constructed at the time the parties got married. I thus find as a fact that the matrimonial home was completed during the subsistence of the marriage and not acquired before the celebration of the marriage between the parties. This property must therefore be a subject of distribution. The next task, thus, is for the court to determine the quantum of proportion that has to be settled between the parties. In the dictum of **APPAU JSC in ADJEI V ADJEI J/4/2021 GHASC 5 (21 April, 2021)**, it is reasonable for the parties to offer evidence as regards the financial provision each made to assist the court in its quest to apply fairness and equity in the matter.

It is the case of the petitioner that she was in the sale of fabrics and beading during the subsistence of the marriage and thus paid the fees of the children. The respondent

maintained that the petitioner never worked. The burden was thus on the petitioner to prove that she paid the school fees for the issues of the marriage. The petitioner never provided any further evidence in support of her assertion. She did not provide evidence of the payment of school fees in support of his assertion. This notwithstanding, the fact that the building was completed during the subsistence of the marriage, the petitioner is entitled to some share of the property. The property is to be valued, and the petitioner paid 20% of its value.

A PARCEL OF LAND AT MILLENIUM CITY, GOMOA FETTEH

The petitioner indicated to the court that the parties have a parcel of land at Millennium City, Kasoa. The respondent denied this assertion of the petitioner. The respondent requested the petitioner to produce the documents on the land. The petitioner answered that she has no documents; however, she knows there is a single room on the land. She then added that she is ready to forgo this property.

A KIA SOL SALOON CAR

The petitioner again asked for the distribution of a KIA Saloon Vehicle. The respondent denied having this vehicle. He said he is in the business of selling vehicles, and so when the petitioner sees him with any vehicle, it does not mean it belongs to him. The petitioner indicated that the documents covering the KIA Sol Saloon Car are in the name of the respondent. Although she made these assertions, she failed to produce the documents covering the vehicle in support of her assertions. She did not even provide the registration number of the vehicle for a search to be conducted to ascertain the existence of the alleged vehicle. The petitioner was thus unable to provide evidence of the existence of the KIA Sol vehicle.

PART OF A BUILDING MATERIALS BUSINESS

The petitioner also asked for a share in a building materials shop they own. The respondent indicated that the business had collapsed due to the petitioner. The petitioner alleged she suspects the respondent had packed the wares to another place to operate the business. The respondent asked if the petitioner could provide evidence to the court. The petitioner said she had none. In the course of cross examination, the petitioner admitted that the shop had collapsed. In essence, there is no shop for the proceeds of same to be distributed.

In conclusion, I order as follows:

- The two bedroom house at Kojo Oku, Nyanyano Kasoa is to be valued and the respondent is to pay to the petitioner 2o % of its value.
- The claim for an equitable share of a parcel of land at Millennium City, Kasoa is dismissed
- The claim for an equitable share of a KIA Sol vehicle is dismissed
- The claim for an equitable share of a building materials business is dismissed
- There will be no order as to costs.

(SGD)

(H/W LINDA AMISSAH)

MAGISTRATE